

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Arthur Albano	Team: Squad #04	CCRB Case #: 201508996	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 10/14/2015 1:45 PM	Location of Incident: Myrtle and Washington Avenue	18 Mo. SOL 4/14/2017	Precinct: 88
Date/Time CV Reported Wed, 10/14/2015 2:25 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 10/21/2015 2:37 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Okera Morrison	04131	928816	079 PCT
2. POF Pamela Benites	13086	946728	079 PCT
3. POM Terrence Howard	10504	950599	079 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Pamela Benites	Abuse: PO Pamela Benites stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Exonerated
B . POF Pamela Benites	Discourtesy: PO Pamela Benites spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . POF Pamela Benites	Abuse: PO Pamela Benites facilitated the frisk of § 87(2)(b)	C . Substantiated
D . POM Terrence Howard	Abuse: PO Terrence Howard searched § 87(2)(b)	D . Unsubstantiated
E . POF Pamela Benites	Abuse: PO Pamela Benites searched the car in which § 87(2)(b) was an occupant.	E . Substantiated
F . SGT Okera Morrison	Abuse: Sgt. Okera Morrison participated in the search of the vehicle in which § 87(2)(b) was an occupant.	F . Substantiated
G . POF Pamela Benites	Abuse: PO Pamela Benites frisked § 87(2)(b)	G . Alleged Victim Uncooperative
H . POM Terrence Howard	Abuse: PO Terrence Howard refused to provide his name and shield number to § 87(2)(b)	H . Unsubstantiated
I . SGT Okera Morrison	Abuse: Sgt. Okera Morrison refused to provide his name and shield number to § 87(2)(b)	I . Unsubstantiated

Case Summary

On October 14, 2015, at approximately 1:45 p.m., § 87(2)(b) was driving on Myrtle Avenue, in Brooklyn, with his girlfriend and co-parent, § 87(2)(b) in the front passenger's seat. § 87(2)(b) crossed a double yellow line to avoid traffic before making a left hand turn on Washington Avenue.

About one half-block later, § 87(2)(b) heard a siren and saw lights flashing from an unmarked vehicle behind him, causing § 87(2)(b) to pull over (**Allegation A**). Three officers, in plainclothes, PO Pamela Benites, PO Terrance Howard, and Sgt. Okeria Morrison, of the 79th Precinct Anti-Crime team, approached his vehicle. PO Benites was the contact officer.

PO Benites seemingly recognized § 87(2)(b) and stated, "Hey!" then all at once, "Turn your car off, take your seatbelt off, get out the car." § 87(2)(b) responded, "What? What are you stopping me for? Why are you stopping me?" PO Benites allegedly responded either, "Because you're driving like a dickhead" or "Because you're driving like an asshole." (**Allegation B**).

§ 87(2)(b) then stepped out of the vehicle and was directed to stand at the rear of the vehicle, and place his hands on the vehicle. PO Howard frisked § 87(2)(b)'s forearms, chest, torso, front pants pockets, down both § 87(2)(b)'s legs (**Allegation C**). PO Howard then ran his hands back up § 87(2)(b)'s legs and allegedly entered both of § 87(2)(b)'s front pants pockets (within **Allegation C** and **Allegation D**).

PO Howard then directed § 87(2)(b) to the back of his car. When § 87(2)(b) did so, he directed his attention to PO Benites whose entire body was allegedly inside the back seat of his vehicle (**Allegation E**). PO Benites then requested § 87(2)(b) exit the vehicle, and allegedly frisked her (**Allegation G**). While at the rear of his vehicle, § 87(2)(b) allegedly asked PO Howard for his name about 20 times, without response (**Allegation H**). § 87(2)(b) also asked Sgt. Morrison what his name was without a response (**Allegation I**). § 87(2)(b) continued to ask for their names and PO Howard allegedly responded that his name was "Johnson", and Sgt. Morrison allegedly responded that his name was "Mack" (**Within Allegations H and I**).

PO Benites then directed § 87(2)(b) to get back in his car, and § 87(2)(b) did so, but PO Benites still had § 87(2)(b)'s keys. PO Benites then allegedly opened § 87(2)(b)'s trunk, and was looking inside of it for about one minute (**Allegation E**). Sgt. Morrison allegedly participated in the search of § 87(2)(b)'s trunk (**Allegation F**). As a result, § 87(2)(b) obtained his phone and began recording the officers. Once § 87(2)(b) turned on the phone, he began asking the officers why they were in his trunk. The officers then immediately closed § 87(2)(b)'s trunk and gave him his keys and walked away. § 87(2)(b) then asked PO1 for her name and she responded, "Benites." All three officers then entered their vehicle and drove away.

§ 87(2)(b) was not arrested, or summonsed as a result of this vehicle stop.

This case was closed three weeks beyond the 90-day benchmark due to officer scheduling conflicts.

Video Footage

§ 87(2)(b) provided video footage that he recorded from this incident. § 87(2)(b) began recording at the end of the interaction when he alleged officers were searching his trunk. The video footage shows officers standing at the rear of his vehicle with the trunk open, and § 87(2)(b) stating, "In my trunk," several times. PO Howard then closes the trunk and escorts him back to his vehicle. PO Benites then hands § 87(2)(b) his car keys and tells him have a nice day and all the officers then return to their police vehicle. § 87(2)(b) asks for PO Benites' name which she provides, "Officer Benites 7-9 precinct." A full description of the video is attached in Board Review 01. A Google Maps canvass and search of the TARU camera list revealed no additional cameras in the vicinity of the incident location.

Mediation, Civil and Criminal Histories

- During his in-person statement, § 87(2)(b) rejected mediation as an alternative resolution to this complaint.
- On February 1, 2016, a notice of claim inquiry was sent to the office of the comptroller's office. A response to this inquiry will be included in the case file upon its receipt.

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[REDACTED]

Civilian and Officer CCRB Histories

- § 87(2)(b) has filed one prior complaint with the Civilian Complaint Review Board. § 87(2)(b)
- PO Benites has been a member of the service for seven years and has four substantiated allegations against her. In CCRB case #201010686, an allegation for Question was substantiated for which CCRB recommended Command Discipline. PO Benites ultimately received a penalty of instructions. In CCRB case number 201409828, an allegation for Frisk, Search (of Person), and Stop were substantiated, for which the CCRB recommended charges. PO Benites is awaiting the NYPD disposition and penalty for that case.
- PO Howard has been a member of the service for four years and has three substantiated allegations against him. In CCRB case #201304352, an allegation for Frisk was substantiated § 87(4-b) § 87(2)(g) for which the CCRB recommended Command Discipline. PO Howard ultimately received a penalty of instruction. In CCRB case #201310961, an allegation for Frisk was substantiated, for which the CCRB recommended Formalized Training. PO Howard ultimately received a penalty of Instructions. In CCRB case #201401016, an allegation for Strip-search was substantiated, § 87(4-b) § 87(2)(g) for which the CCRB recommended Formalized Training. PO Howard is awaiting the NYPD disposition and penalty for that case.
- Sgt. Okera Morrison has been a member of the service for 14 years and there are no substantiated CCRB allegations against him.

Potential Issues

- § 87(2)(b) provided a phone statement to the CCRB, but did not want to provide a sworn statement, or involve herself any further in the case. § 87(2)(b)

Findings and Recommendations

Allegations not pleaded

- § 87(2)(g)

§ 87(2)(g)

Allegation A –Abuse of Authority: PO Pamela Benites stopped the vehicle in which

§ 87(2)(b) and § 87(2)(b) were occupants.

It is undisputed that PO Benites stopped § 87(2)(b)'s vehicle in the vicinity of Washington Avenue and Myrtle Avenue, in Brooklyn.

§ 87(2)(b) (Board Review 03) admitted that he may have crossed a double yellow line before making a left onto Washington Avenue from Myrtle Avenue. § 87(2)(b) (Board Review 04) stated that she was not sure if § 87(2)(b) was driving over the speed limit, but he was driving quickly because she was pregnant and told § 87(2)(b) that she needed to use a restroom.

According to PO Benites (Board Review 05), PO Howard (Board Review 06) and Sgt. Morrison (Board Review 07), § 87(2)(b) was driving well over the speed limit in the area, drove through two steady red lights and crossed onto the opposite side of the road before making a left turn onto Myrtle Avenue.

By § 87(2)(b)'s own statement, he crossed the double yellow dividing line to pass a couple of cars before making a left hand turn the intersection of Myrtle Avenue and Washington Avenue. It should be noted that § 87(2)(b) admitted to driving up to the intersection to make his left hand turn, not simply making a left hand turn, which would be admissible under the VTL.

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as *exonerated*.

Allegation B- Discourtesy: PO Pamela Benites spoke discourteously to § 87(2)(b)

It is undisputed that PO Benites was the contact officer during this vehicle stop, and had the only verbal interaction with § 87(2)(b) prior to him being ordered out of his vehicle.

According to § 87(2)(b) when he asked why he was pulled over, PO Benites responded that he was driving either, “like an asshole” or, “Like a dick.” § 87(2)(b) alleged that PO Benites said § 87(2)(b) was “Driving like an asshole.”

PO Benites denied saying § 87(2)(b) was driving like an asshole or like a dick, and denied using any profanity to § 87(2)(b) throughout the entirety of the vehicle stop. Sgt. Morrison and PO Howard also denied hearing PO Benites make those specific statements or use any profanity throughout the entirety of the vehicle stop.

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as *unsubstantiated*.

Allegation C- Abuse of Authority: PO Pamela Benites facilitated the frisk of § 87(2)(b)

Allegation D- Abuse of Authority: PO Terrence Howard searched § 87(2)(b)

It is undisputed that PO Howard frisked § 87(2)(b). PO Benites admitted that she asked PO Howard to frisk him since § 87(2)(b) requested a male officer to frisk him. According to § 87(2)(b) and § 87(2)(b) PO Benites ordered § 87(2)(b) out of his vehicle upon approach and he was frisked immediately by PO Howard. § 87(2)(b) denied reaching for anything within his vehicle, and denied that PO Benites ordered him to keep his hands in sight.

According to PO Benites and PO Howard, who were standing on the driver's side of the vehicle, § 87(2)(b) was yelling and cursing at PO Benites. PO Howard was positioned at the driver's side, behind PO Benites, and heard § 87(2)(b) continually state, “I got something for you,” which was not corroborated by PO Benites or Sgt. Morrison. PO Benites and PO Howard stated that § 87(2)(b) continually reached underneath his seat with his right hand. Sgt. Morrison,

who was positioned at the front passenger side, stated that he did not see § 87(2)(b)'s movements, but instead watched PO Benites' eyes. PO Benites and PO Howard continually asked § 87(2)(b) to show his hands, but he kept reaching underneath his seat. PO Benites stated that she later discovered broken bits of marijuana near § 87(2)(b)'s seat. The officers determined based on his movements that he was attempting to hide the marijuana underneath his seat.

§ 87(2)(g)

- [REDACTED]
- In regards to the movements within the vehicle, the Stop Question and Frisk Report (UF-250) for this incident, lists the only factor as reason for the frisk, "Knowledge of suspects prior criminal behavior," (Board Review 08) and there is no mention of § 87(2)(b)'s movements inside the vehicle at all, in any section of the UF-250, or any of the officers' memo books (Board Review 09). PO Howard was not positioned well to make the observation of § 87(2)(b)'s movements that he alleged to have seen and Sgt. Morrison claimed he did not see them because he was watching PO Benites' eyes. However, according to Sgt. Morrison's testimony, he heard no instructions for § 87(2)(b) to show his hands before he was removed from the vehicle.

§ 87(2)(g)

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

In order to justify a frisk, an officer must harbor reasonable suspicion that the person subjected to the frisk is armed and dangerous. *Arizona v. Johnson*, 555 U.S. 323 (2009)

An officer's knowledge of defendant's criminal past is not itself tantamount to an indication of criminality, *People v. Brown*, 115 A.D.3d 38 (1st Dept. January 16, 2014). (Board Review 9)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **substantiated** and **Allegation D** be closed as **unsubstantiated**.

Allegation E- Abuse of Authority: PO Pamela Benites searched the vehicle in which

§ 87(2)(b) and § 87(2)(b) were occupants.

Allegation F- Abuse of Authority: Sgt. Okera Morrison participated in the search of the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

It is undisputed that § 87(2)(b) was frisked with negative results and brought to the rear of his vehicle (near the trunk). § 87(2)(b) then alleged that he observed PO Benites' entire body in the back seat of his vehicle. In addition to this search, § 87(2)(b) and § 87(2)(b) alleged that at the end of the interaction, PO Benites opened his trunk and began looking inside of it. § 87(2)(b) stated that he then exited his vehicle with his phone, and began recording the officers. Once the officers saw he was recording they closed his trunk, gave back his keys and immediately left the scene. § 87(2)(b) added that she observed PO Benites enter each of the doors of the vehicle and look underneath the seats.



201508996_20151029_1701_DM.mp4

The video for this incident (attached above) shows PO Benites, standing at the rear of § 87(2)(b)'s vehicle with the trunk open, just to the right of the open trunk and Sgt. Morrison on the driver's side, behind the trunk. All of the officers are stationary at the trunk and there is about a second delay from when § 87(2)(b) begins recording that PO Howard closes § 87(2)(b)'s trunk. The video then shows PO Howard walking § 87(2)(b) back to his vehicle, and PO Benites handing § 87(2)(b) his car keys back and then all officers immediately heading back to their vehicles thereafter.

PO Benites admits to visually inspecting the vehicle from the outside of the vehicle but denied ever entering the vehicle to search any portion of the vehicle. Sgt. Morrison and PO Howard denied seeing PO Benites enter any part of the vehicle, but stated that they were focused on § 87(2)(b) at the rear of the vehicle at the time the vehicle search allegedly occurred.

All three officers denied searching § 87(2)(b)'s trunk. According to the officers, they were leaving the location at the end of the stop, and § 87(2)(b) himself, opened his trunk and began recording them, while falsely claiming they were searching his trunk. In PO Benites' CCRB statement, she originally stated that she did not have the keys to § 87(2)(b)'s vehicle and therefore did not have the ability to open his trunk at the time it was opened by § 87(2)(b). However, after presenting the video of the incident to PO Benites, she acknowledged that she had § 87(2)(b)'s keys when the trunk was opened and returned the keys to him thereafter. However, she maintained that she did not open the trunk or search it.

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

A vehicle may be searched without a warrant pursuant to the "automobile exception" if law enforcement officials have probable cause to believe that the vehicle contains contraband, evidence of a crime, a weapon, or some means of escape. *People v. Robinson* 98 A.D.3d 590 (Sup. Ct. New York 2012). (Board Review 09)

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g) [redacted]
[redacted]
§ 87(2)(g) [redacted]
[redacted] It is therefore recommended that **Allegations E and F** be closed as ***substantiated***.

Allegation G- Abuse of Authority: PO Pamela Benites frisked § 87(2)(b)
§ 87(2)(b) was at the rear of the vehicle and stated that he was not paying attention to whether PO Benites frisked § 87(2)(b). All officers denied that PO Benites frisked § 87(2)(b). As stated in the Potential Issues Section, § 87(2)(b) refused to cooperate with the CCRB in providing a sworn statement.

§ 87(2)(g) [redacted]
[redacted] It is therefore recommended that **Allegation G** be closed as ***victim uncooperative***.

Allegation H- Abuse of Authority: PO Terrence Howard refused to provide his name and shield number to § 87(2)(b)

Allegation I- Abuse of Authority: Sgt. Okera Morrison refused to provide his name and shield number to § 87(2)(b)

It is undisputed that § 87(2)(b) requested PO Howard's and Sgt. Morrison to provide their names. It is undisputed that both officers eventually responded to the request. However, the officers' responses are in dispute. According to § 87(2)(b) PO Howard responded that his name was "Johnson" and PO Morrison responded that his name was "Mack." § 87(2)(b) denied hearing § 87(2)(b) ask for the officers names, but was inside the vehicle for a portion of their interaction. PO Howard and Sgt. Morrison both stated that they provided their correct ranks and names to § 87(2)(b) upon request. Additionally, PO Howard stated that he provided his full name and § 87(2)(b) made a joke about the Hollywood actor Terrence Howard and his part on the T.V. show Empire.

§ 87(2)(g) [redacted]
[redacted]
[redacted]
It is therefore recommended that **Allegations G and H** be closed as ***unsubstantiated***.

Squad: #4

Investigator: _____
Signature Arthur Albano Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date